

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 27, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

PRESENTATION FROM THE CITY OF CHEYENNE TO CHEYENNE FRONTIER DAYS FOR THEIR WORK DURING CFD 2012. Police Chief Brian Kozak commended Cheyenne Frontier Days leadership and volunteers for their responsible liquor management procedures and policies at Frontier Park during the recent annual CFD event and presented the organization, through Rod Hottle, this year's General Chairman, with the annual Police Chief's award. Chief Kozak also presented Dawn Thompson with a commemorative Calvary Honor Guard sword in recognition of her efforts in spearheading the CFD's liquor management program. Participating in the presentation were members of the Police Department's Calvary Honor Guard.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Dr. Rinne and Ms. Ash, agenda items #13 and #21(d) were removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 13, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services and vacated Council Chambers. Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public meeting for the purpose of receiving public comment on the submission of a 5307 Federal Grant to fund transportation services by Cheyenne Transit for Fiscal Year 2013. Joe Dougherty, Transit Director, clarified they were requesting \$784,911.00 in Federal assistance, and City General Fund Revenue in the amount of \$409,130.00. He advised it takes \$1,666,553 to run the bus program, and reviewed various services that are provided. There being no further comments and purpose of the public hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Amending, repealing, and creating certain sections of Chapter 10.52, Stopping, Standing, and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming, relating to the Parking of Recreational Vehicles and Trailers – referred to Public Services Committee (sponsors – Ms. Ash, Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Spiker and Mr. Valdez).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Grenville Subdivision, First Filing, a replat of the West 44 feet of Lot 3, Lots 4-7 and the East 10 feet of Lot 8, Block 1, Lake Minnehaha Addition and Lots 21-30, Block 1, Resubdivision of Lake Minnehaha Addition, and the alley between said lots, Cheyenne, Wyoming (located south of and adjacent to E. Lincolnway, west of Hot Springs Avenue). Reporting for Public Services Committee, Ms. Ash advised there was no recommendation on the item from the Committee. Ms. Ash moved to adopt, seconded by Ms. Broyles. It was noted that questions raised at the Committee meeting had been answered by the City Engineer. Motion carried. Voting “yes” -- all members of the governing body. (#5421)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5422)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5423)

RESOLUTION - Authorizing the City of Cheyenne to Approve and Accept the Fiscal Year 2011 Staffing for Adequate Fire and Emergency Response (SAFER) Grant from the United States Department of Homeland Security in the amount of \$846,090.00 (Award No. EMW-2011-FH-00743). Chief James Martin, Fire and Rescue Department, clarified the grant will provide funding for salaries and benefits to hire 5 additional firefighters for a 2 year term, noting the additional staff will assist in providing coverage for increased areas to the City. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Upon inquiry, Chief Martin explained the current Collective Labor Agreement states there will be a minimum of 88 firefighters and unless the number changes over the next 2 years it will remain the same. He explained the City will not be obligated to retain the additional firefighters at the end of the 2 year term. Discussion included concerns with expiration of the grant funding and maintaining the required number of firefighters; Labor Agreement provisions relative to staffing requirements and future negotiations, and overtime costs. Upon inquiry, Jon Narva, Operations Chief, verified the grant allows for the hiring of up to 5 additional firefighters and if less than 5 were hired the grant funding amount would be reduced accordingly. Motion carried. Voting “yes” -- all members of the governing body. (#5424)

[CA] RESOLUTION - Authorizing the filing of an application with the Federal Transit Administration, an operating administration of the United States Department of Transportation, for Federal Transportation Assistance authorized by Title 49, United States Code, Section 5307 (Cheyenne Transit Program) – referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Amending Resolution No. 5335 Authorizing the City of Cheyenne, through the City Attorney’s Office, to commence condemnation proceedings to obtain certain temporary construction easements for the use of certain land generally located at 1900 Converse Avenue necessary for the completion of the East Pershing Boulevard Reconstruction Project – referred to Finance

Committee (sponsor – Mr. Collins).

[CA] RESOLUTION - Repealing Resolution No. 4919; authorizing the Director of the City of Cheyenne Parks and Recreation Department to establish fees for the use of facilities and for participation in programs administered by the Recreation, Golf and Leisure Services Divisions; and directing that certain discounts be made available to City employees, City retirees and their immediate family members – referred to Finance Committee (sponsor – Ms. Broyles).

RESOLUTION - Repealing Resolution No. 5417 and adopting application, initial and renewal fees for certain new classifications of City of Cheyenne contractor licenses and building trade licenses – referred to Finance Committee (sponsor – Mr. Brown). Mr. Brown advised the item was reviewed under other items for the agenda at the August 20th Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Brown moved to adopt, seconded by Mr. Spiker. Bruce Wilson, Chief Building Official, explained the purpose of the resolution was to provide for inclusion of a new Class R license classification, which pertains to single-family buildings, which was inadvertently omitted from the schedule (Exhibit A) of new licenses and fees submitted with the initial resolution that was previously adopted. Motion carried. Voting “yes” -- all members of the governing body. (#5425)

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Street and Alley Road Maintenance Facility Addition Project, Phase I – referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the Snyder Avenue Sewer Rehabilitation Project from West 24th Street to West Pershing Boulevard – referred to Finance Committee (sponsor - Mr. Collins).

[CA] RESOLUTION - Prioritizing the City of Cheyenne’s September 2012 applications for Mineral Royalty Capital Construction Grants – referred to Finance Committee (sponsors - Mr. Brown and Mr. Collins).

[CA] Juvenile Housing Agreement between Laramie County, Wyoming, and the City of Cheyenne. Motion (per Consent Agenda) carried. (#5899)

[CA] User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior “A” Hockey, LLC, to host the 2012-2013 season at the City-owned Ice and Events Center. Motion (per Consent Agenda) carried. (#5900)

[CA] Media Sales Agency Agreement between the City of Cheyenne, Parks and Recreation Department, Cheyenne Stampede Junior “A” Hockey, LLC and SeeHear Media, LLC, for Static Visual Advertising at the City-owned Ice and Events Center. Motion (per Consent Agenda) carried. (#5901)

Wind Energy Lease Agreement between the City of Cheyenne and Cheyenne Wind, LLC, for Windpower Facilities on the Belvoir Ranch. James Perrott Macneil spoke in opposition to any lease, or sub-lease, agreements involving the Belvoir Ranch property, and expressed Belvoir Ranch ownership concerns. Ed Clark expressed concerns with aesthetic views and physical appearances related to

gateways into the City; restricting the City's opportunity for growth; initial purposes of acquiring the ranch, and long term impact a wind farm may be on the community. Paul Edner raised questions regarding the view being greatly depreciated if there are 150 more wind turbines within sight of the western part of the City; income to the City during the project's development time frame; agreement provisions addressing any default of the lease by the developer and putting the land back to its original state, and bonding requirements if the company becomes insolvent. Mr. Brown moved to approve, seconded by Mr. Collins. Upon inquiry, Bruce Morley, CEO, Morley Companies (affiliated with Cheyenne Wind), reviewed terms of the lease relative to revenue to the City once production begins; sharing of planning studies information with the City; bond coverage provision in the lease, environmental study impacts, and location and visual impact of the wind turbines. Discussion topics included visual impact concerns; royalties to the City over the next 30 years from wind turbine production; City Council work sessions that have been held on the subject, and lease agreement provision involving an option to extend the lease time frame. Upon inquiry, Dan White, City Attorney, reviewed terms in the agreement pertaining to the option to extend the term. Mr. Morley explained that due to the nature of developing wind power projects, it takes a great deal of time to complete the planning, studies and permitting processes involved, and spoke in favor of the option to extend the lease time frame. Upon inquiry, Mr. White clarified pursuant to the lease agreement the company must demonstrate they are making reasonable progress during the additional 5 year lease option and will be required to make annual payments as outlined in the lease. He stated his viewpoint that if it is not shown there is progress on the project then a resolution could be presented to the governing body to make that determination and to consider terminating the lease. Upon inquiry, Mayor Kaysen provided information on the interest in a lease agreement expressed by Cheyenne Wind, LLC, and subsequent discussions resulting in the proposed agreement, noting this type of exclusive agreement does not require a competitive bid process. Mr. White stated his opinion that the governing body has the discretionary judgment to decide whether or not to enter into the lease agreement with the company. Mayor Kaysen reviewed the process that resulted in preparation of the lease agreement with the company, which included utilization of outside legal counsel specializing in wind energy development agreements, and noted similar State of Wyoming leases were also reviewed in conjunction with drafting the proposed lease agreement. Discussion followed on factors involving the ascertainment of a bonding amount; whether additional bonding could be required, and whether development of the project was contingent upon any Congressional tax credit action. Upon inquiry, Mr. Morley addressed questions regarding the matter of any Federal wind power tax credits, and discussed Wyoming's capacity to generate wind energy. Tom Zachary questioned whether communication had been made with the Corps of Engineers regarding the proposed area to be leased relative to restoration of the former missile site on the property. Mr. Morley responded that they have interfaced extensively with the Cheyenne Board of Public Utilities, U.S. Army Corps of Engineers and Wyoming DEQ and advised it has been agreed that one project won't interfere with the other and if it is determined there is a ground water pollution area, then the project won't extend into that area. Motion carried. Voting "yes" -- all members of the governing body with the exception of Ms. Ash voting "no". (#5902)

[CA] Cooperative Agreement between the City of Cheyenne, Wyoming Department of Transportation and Tourism Promotion Joint Powers Board for a railroad quiet zone project at the Southwest Drive/Union Pacific Railroad Crossing (2007-2010 1% Sales Tax) – referred to Finance Committee.

[CA] Use Agreement between the City of Cheyenne and Creative Outdoor Advertising giving permission to install advertising bus shelter benches and pads within and along the City's Public Rights of Way – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and AVI to develop the Snyder Avenue reconstruction design (2007-2010 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5725 between the City of Cheyenne and Reiman Corporation, Cheyenne, Wyoming, for the East Cheyenne Greenway Phase IV Project (1% Specific Purpose Sales & Use Tax) – referred to Finance Committee.

[CA] Consideration of Bid #M-2-13 for a contract between the City of Cheyenne, Parks and Recreation Administration, and Pioneer Construction Co., Inc., Cheyenne, Wyoming, for the new concessions and toilet facilities for Pioneer Park Project (State and Local Grants funding). Motion (per Consent Agenda) carried (amount not to exceed \$308,609.00). (#5903)

[CA] Consideration of Bid #R-4-13 for furnishing bulk Ice Control Product to the City of Cheyenne, Public Works Department (2007-2010, 2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Desert Mountain Corporation, Riverton, WY; amount not to exceed \$114,880.00).

[CA] Consideration of Bid #M-5-13 for a contract between the City of Cheyenne, 1% Construction, and CBJ Asphalt and Concrete Contractors, LLC, Phoenix, Arizona, for Fiscal Year 2013 Crack Seal Project (2007-2010 1% Sales Tax) – referred to Finance Committee.

Appointment of Michael A. Metzler to the Contractor Licensing Board. Mr. Collins moved to approve, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Request by retail liquor licensee One East Sixteenth, LLC, 1601 Central Avenue, for a 90 day extension of the time frame condition placed on the license pertaining to a lease agreement with a restaurant establishment to operate within the building. Motion (per Consent Agenda) carried (approved to extend the time frame to October 23, 2012).

Announcement was made of a Public Hearing to be held September 10, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for Safeway Stores 46, Inc. d/b/a Safeway Store #2975, 305 Cole Shopping Center, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, 112 W. 17th Street, Cheyenne, Wyoming).

Announcement was made that due to the Labor Day holiday on Monday, September 3, 2012, regularly scheduled City Council Committee Meetings will instead be held in the Municipal Building, Room 122, 2101 O'Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, September 4, 2012 at 11:00 a.m. and Public Services Committee will meet Wednesday, September 5, 2012 at Noon.

Under other business:

Barbie Harrington questioned the amount of money the City has spent to date on attorney fees regarding the “taking” involving the Hollywood Video property. Dan White, City Attorney, advised legal fees incurred are approaching \$30,000 and that negotiations are continuing, noting a right-of-entry hearing is scheduled for Nov. 26, 27 and 28 in district court. Ms. Harrington commented on recent governing body approval of a bicycle route plan and questioned if it could be repealed as there appeared to be a lot of “tentacles” in the plan. She stated her concerns with public awareness of the lengthy plan document. Upon Ms. Harrington’s inquiry to Ms. Ash, Ms. Ash explained the document is simply a plan for guidance, which may be reviewed/revised in the future, and allows for the capability to apply for grant funds. Ms. Harrington further commented on revoking the Uniform Development Code, and expressed concerns with property rights and public awareness; Belvoir Ranch exclusive lease agreement, and recently reported \$3,000,000 in funds that was “found” in the City’s budget. Mayor Kaysen confirmed the \$3,000,000 amount was not “lost”; it was a budgeted amount and is the difference in what was available funding in last year’s budget vs. what was expended.

Pursuant to comment regarding weed removal on City owned property near the intersection of Converse and Pershing, Mayor Kaysen advised that maintenance of the property was done earlier this season and he would address further work regarding the weeds.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:23 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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